

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BOBBY GIDDINGS,

Plaintiff,

-against-

POLICE OFFICER KEVIN BRABAZON, Shield No.
23726, POLICE OFFICER LAURENT MEDE, Shield No.
6673, POLICE OFFICER PIERRE CHARLES, Shield No.
5506, and SERGEANT ERIK EASTERBROOK,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates BRONX
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 10, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER KEVIN BRABAZON, Shield No. 23726, Transit District 3, 145th
Street/St. Nicholas Avenue Subway Station, New York, NY 10019
POLICE OFFICER LAURENT MEDE, Shield No. 6673, Transit District 3, 145th
Street/St. Nicholas Avenue Subway Station, New York, NY 10019
POLICE OFFICER PIERRE CHARLES, Shield No. 5506, Transit District 3, 145th
Street/St. Nicholas Avenue Subway Station, New York, NY 10019

SERGEANT ERIK EASTERBROOK, Transit District 3, 145th Street/St. Nicholas
Avenue Subway Station, New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

BOBBY GIDDINGS,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

POLICE OFFICER KEVIN BRABAZON, Shield No.
23726, POLICE OFFICER LAURENT MEDE, Shield No.
6673, POLICE OFFICER PIERRE CHARLES, Shield No.
5506, and SERGEANT ERIK EASTERBROOK,**JURY TRIAL DEMANDED**

Defendants.

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Plaintiff, BOBBY GIDDINGS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On September 10, 2015, at approximately 3:30 a.m., plaintiff Bobby Giddings was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment while lawfully present inside of the Number 1 train subway station located at West 242nd Street and Broadway, Bronx, New York. Additionally, the defendant police officers subjected plaintiff to excessive force when they, amongst other things, they pushed plaintiff's head into a wall, threw him onto the ground and repeatedly punched him in his body and tightly handcuffed him. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. All charges against plaintiff were dismissed and sealed on March 9, 2016. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, used excessive force, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff Bobby Giddings is a resident of the State of New York.

3. POLICE OFFICER KEVIN BRABAZON, Shield No. 23726, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER KEVIN BRABAZON, Shield No. 23726, was assigned to the Transit District 3 Precinct.

5. POLICE OFFICER KEVIN BRABAZON, Shield No. 23726, is being sued in his individual and official capacities.

6. POLICE OFFICER LAURENT MEDE, Shield No. 6673 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, POLICE OFFICER LAURENT MEDE, Shield No. 6673 was assigned to the Transit District 3 Precinct.

8. POLICE OFFICER LAURENT MEDE, Shield No. 6673 is being sued in his individual and official capacities.

9. POLICE OFFICER PIERRE CHARLES, Shield No. 5506, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject incident, POLICE OFFICER PIERRE CHARLES, Shield No. 5506, was assigned to the Transit District 3 Precinct.

11. POLICE OFFICER PIERRE CHARLES, Shield No. 5506, is being sued in his individual and official capacities.

12. SERGEANT ERIK EASTERBROOK, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. On the date of the subject incident, SERGEANT ERIK EASTERBROOK, was assigned to the Transit District 3 Precinct.

14. SERGEANT ERIK EASTERBROOK, is being sued in his individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On September 10, 2015, at approximately 3:30 a.m., plaintiff was lawfully present inside of the Number 1 train subway station located at West 242nd Street and Broadway, Bronx, New York when the defendant police officers unlawfully approached plaintiff without reasonable suspicion or probable cause.

21. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

22. Suddenly, without any provocation or legal justification, the defendant police officers forcibly grabbed plaintiff, threw him against the wall causing him to hit his head, threw him down to the ground, and punched him all over his body causing plaintiff to suffer serious physical causing plaintiff to suffer injuries head and body.

23. At no point in time did plaintiff resist arrest in any way.

24. The defendant police officers then unlawfully handcuffed plaintiff, forcibly placed him in the back seat of the police vehicle, and transported him to the Transit District 3 precinct.

25. At the Transit District 3 precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

26. Thereafter, on September 10, 2015, at approximately 9:30 a.m., plaintiff was transported to Bronx Central Booking.

27. The defendant police officers falsely stated to the Bronx County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

28. Plaintiff was unlawfully charged with Resisting Arrest only.

29. On September 10, 2015, at approximately 11:30 p.m., after approximately 21 hours in police custody, plaintiff was arraigned in Bronx Criminal Court and plaintiff was released from custody.

30. Thereafter, all charges were dismissed and sealed on March 9, 2016.

31. As a result of the unlawful arrest, plaintiff missed one day of work at Equinox and as a result lost approximately \$60 in wages.

32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

33. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 55 with the same force and effect as if fully set forth herein.

57. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

58. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

59. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

60. In withholding/creating false evidence against plaintiff Bobby Giddings and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

61. As a result of the foregoing, plaintiff Bobby Giddings, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants by grabbing plaintiff and throwing him against a wall causing him to hit his head, throwing him down to the ground and punching him about his body causing him to suffer serious physical injuries was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

74. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Bobby Giddings demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 10, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER KEVIN BRABAZON, Shield No. 23726, Transit District 3, 145th Street/St. Nicholas Avenue Subway Station, New York, NY 10019
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SERGEANT ERIK EASTERBROOK, Transit District 3, 145th Street/St. Nicholas Avenue Subway Station, New York, NY 10019

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 10, 2018

/s/
STUART E. JACOBS, ESQ.